IN THE COURT OF [COURT NAME]

Lawyer's Brief for Complainant in Cyber Dispute Case

Introduction

This brief is submitted on behalf of the Complainant in a cyber dispute case against the Respondent. The dispute involves unauthorized transactions from the Complainant's bank account following the sharing of a One-Time Password (OTP).

Facts of the Case

1. **Sharing of OTP**: The Complainant shared an OTP, which led to unauthorized access to their bank account.
2. **Unauthorized Deduction**: As a result, ₹45,000 was deducted from the Complainant's account without their consent.

Applicable Law Sections

The following law sections are applicable to this case:

- **RTI Act 2005, Section 20**: Pertaining to penalties for failure to furnish information.
- **RTI Act 2005, Section 7**: Regarding the disposal of requests.
- **BNSS 2023, Section 260**: Relevant to the obligations of banking services.
- **BNSS 2023, Section 531**: Concerning the security measures for electronic transactions.
- **BNS 2023, Section 177**: Relating to the duties of banks in preventing fraud.

Relief Sought

The Complainant seeks the following reliefs:

1. **Refund of ₹45,000**: The amount deducted from the Complainant's account should be refunded in full.
2. **Compensation for Mental Agony and Harassment**: The Respondent should compensate the Complainant for the mental agony and harassment suffered due to the unauthorized transactions.
3. **Directions to the Bank**: The Court should direct the bank to take necessary actions to prevent future unauthorized transactions, ensuring the security of the Complainant's account.

Conclusion

In light of the facts and applicable law sections, it is clear that the Respondent is liable for the unauthorized transactions. The Complainant is entitled to the relief sought, and it is the Court's duty to ensure justice is served by granting the requested reliefs.

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